

## 25STCV09147 25STCV09147

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-02

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Case Number: 25STCV09147 Hearing Date: July 2, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

25STCV09147

TRAVON

DEMESME vs NISSAN NORTH AMERICA, INC.

July

2, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY  
SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26.

RULING:

The Court orders the Motion  
off calendar as moot, considering service of disclosures and documents, and  
finds good cause in opposition to sanctions.

Plaintiff to give notice.

I.

#### BACKGROUND

On March 27, 2025, TRAVON  
B DEMESME (Plaintiff) filed a Lemon Law Complaint against NISSAN NORTH AMERICA,  
INC. and GARDENA NISSAN (Defendants), alleging Causes of Action under the  
Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a  
Fifth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiff alleges  
purchasing, with warranty provisions, a 2020 Nissan Pathfinder that Defendant  
manufactured, which had defects including AEB System, transmission, engine, and  
electrical. Plaintiff further alleges that Defendants failed to repair the  
vehicle within a reasonable number of attempts and did not promptly replace it  
or make restitution.

On April 23, 2026, Plaintiff  
filed the Motion to Compel disclosures under Code of Civil Procedure section 871.26  
and to be awarded \$2,500.00 in sanctions, on the ground that NISSAN NORTH  
AMERICA, INC. (Defendant) failed to comply with that statutory section.

Defendant filed an  
Opposition, reporting compliance, justifiable delay during settlement efforts,  
and requests exceeding the statutory scope.

II.

#### LEGAL STANDARD

Code of Civil Procedure section 871.26 provides that, unless the party  
failing to comply with discovery requirements shows good cause, judges shall  
impose sanctions, including \$1,500.00 against a plaintiff's attorney, or  
\$2,500.00 against a defendant's attorney, to be paid within 15 business days,  
for the failure to comply with initial document production. (Code Civ. Proc., §

871.26, subd. (j)).

As to Lemon Law cases, Code of Civil Procedure section 871.26, effective January 1, 2025, provides in material part, the following:

“(h) The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction with the sale of the motor vehicle.

(3) Sample brochures published for the motor vehicle.

(4) The motor vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the manufacturer is in possession.

(6) Motor vehicle information reports, including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins (“TSBs”)<sup>1</sup> for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

(Cal. Civ. Proc. Code § 871.26, subd. (h). See also generally, 4 Witkin, Summary 11th Sales § 334C (2025); Cal. Judges Benchbook Civ. Proc. Discovery § 23.49.)

III.

#### ANALYSIS

Plaintiff maintains that Defendant should be compelled to serve responses and to pay sanctions, due to failure to comply with Code of Civil Procedure section 871.26 having initial disclosure requirements.

Defendant responds that

(1) the parties justifiably agreed to temporarily suspend AB 1755 disclosure and production obligations while working towards settlement, (2) Defendant has since served disclosures and produced documents, and (3) the Motion seeks some documents beyond the scope of section 871.26.

The Discovery Act

analogously relates to document production addressed in section 871.26 targeted at Lemon Law. Where respondents have served untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including ordering the motion off calendar as moot. (See *Sinaiko Healthcare Consulting, Inc. v. Klugman* (2007) 148 Cal.App.4th 390, 409; *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 [citing *Sinaiko* regarding supplemental responses].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.)

The Court exercises

discretion to order the matter off calendar, considering the disclosures and production occurring after the Motion's filing.

Also, the Court

determines that there is no governing case about legislative interpretation of the scope of disclosure and production under section 871.26. "A legal proposition asserted without apposite authority necessarily fails." (*People v. Taylor* (2004) 119 Cal.App.4th 628, 643.) Issues of legislative interpretation involve pure questions of law that the reviewing courts independently review de novo. (E.g., *Wolf v. CDS Devco* (2010) 185 Cal.App.4th 903, 913.)

The Court does not order

disclosure and production falling outside the scope of section 871.26, as to which the Discovery Act would serve as the prescribed procedure. Analogously, where a specialized Pitchess motion does not apply to the information sought, the proper procedure is to demand an inspection of the information pursuant to Code of Civil Procedure section 2031.030. (*Ibarra v. Superior Court* (2013) 217 Cal.App.4th 695, 706.)

The Court finds that the

Opposing Declaration shows good cause for failing to comply timely with the

discovery requirements of section 871.26, based upon delaying for mutual settlement efforts. So, the Court does not impose sanctions.

IV.

#### CONCLUSION

Accordingly, the Court orders  
the Motion off calendar.